# BOARD OF ADJUSTMENT

# CHANGE OF NONCONFORMING USE AND APPEAL CHECKLIST

ALL OF THE FOLLOWING MUST BE SUPPLIED:

1. Completed application including property owner's signature (no fax or copy).
2. Legal description of the property including Deed Book, Page Number, and Group Number.
3. If development is planned by this application, then the Board requires the submission of a Site Plan for the development/use of the property in accordance with Article 30, of the Boone County Zoning Regulations.
3. Names and mailing addresses of all adjoining property owners, including those located across any road, street, or highway.
4. Fee paid in full at the time of application.

APPEAL REVIEW:

| | |
|---|---|
| Agricultural and Residential Zones | $400.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR) |
| All Other Zones | $400.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting) + $66.00 (CLUR) |

CHANGE OF NONCONFORMING USE REVIEW:

| | |
|---|---|
| Agricultural and Residential Zones | $350.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR) |
| All Other Zones | $650.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting) + $66.00 (CLUR) |

Failure to supply any of the above information may result in delays.

The Board of Adjustment is a three or five member panel designed to take action on requests for Appeals, Variances, Conditional Uses, and Change of Nonconforming Uses. The hearing is open to the public and any interested party will have the opportunity to be heard. Action is normally taken during the meeting.

The Boone and Florence Board meetings are held on the second Wednesday of each month and the deadline for all applications is typically 22 days prior to the meeting.

The Union and Walton Board meetings are scheduled once an application is submitted for review.

It is recommended that an applicant review the requirements of the Zoning Regulations concerning Change of Nonconforming Uses or Appeals and the criteria for their review. Applicants should be prepared to answer questions concerning their application at the meeting.